

SHIPPING AND LOGISTICS SERVICES AGREEMENT

This Shipping and Logistics Services Agreement ("Agreement") is entered into as of January 15, 2025 (the "Effective Date") by and between:

ZEMENT STONE, INC., a Colorado corporation with its principal place of business at 4820 Industrial Park Drive, Denver, Colorado 80216 ("Buyer"), and

COLORADO FREIGHT LLC, a Colorado limited liability company with its principal place of business at 1175 Commerce Way, Aurora, Colorado 80011 ("Vendor").

Buyer and Vendor are each referred to as a "Party" and collectively as the "Parties."

RECITALS

WHEREAS, Buyer is engaged in the business of supplying and distributing stone, masonry, and related construction materials; and

WHEREAS, Vendor is a licensed motor carrier providing freight and logistics services within Colorado and the surrounding region; and

WHEREAS, Buyer desires to retain Vendor to provide certain shipping and logistics services on the terms set forth herein.

NOW, THEREFORE, in consideration of the mutual covenants and agreements contained herein, the Parties agree as follows:

1. SCOPE OF SERVICES

1.1 Services. Vendor shall provide outbound freight transportation services for Buyer's stone and masonry products from Buyer's Denver, Colorado warehouse to delivery locations within the state of Colorado and contiguous states (Wyoming, Nebraska, Kansas, Oklahoma, New Mexico, Utah, and Arizona) (the "Services").

1.2 Equipment. Vendor shall provide flatbed and dry van trailers, properly maintained, registered, and insured, suitable for the safe transport of palletized stone products weighing up to 48,000 pounds per load.

1.3 Scheduling. Buyer shall provide Vendor with shipment requests at least forty-eight (48) hours in advance of the requested pickup time. Vendor shall confirm acceptance of each shipment request within four (4) business hours of receipt.

1.4 Performance Standards. Vendor shall make commercially reasonable efforts to achieve on-time delivery on at least ninety-five percent (95%) of confirmed shipments, subject to weather, road conditions, and other circumstances beyond Vendor's reasonable control.

2. PRICING AND FEES

2.1 Flat Rate Pricing. Buyer shall pay Vendor the following flat rates per shipment, inclusive of fuel, labor, equipment, standard insurance, and all routine handling:

- (a) Local Denver Metro (within 50 miles): \$385 per shipment
- (b) Colorado statewide (51-300 miles): \$725 per shipment
- (c) Out-of-state regional (301-700 miles): \$1,450 per shipment
- (d) Out-of-state extended (701-1,200 miles): \$2,100 per shipment

2.2 No Additional Fees. The rates set forth in Section 2.1 are all-inclusive. Vendor shall not assess fuel surcharges, administrative fees, per-pallet handling fees, brokerage fees, or any other charges not expressly listed in this Agreement without Buyer's prior written approval.

2.3 Detention. If Vendor's driver is held at a pickup or delivery location for more than two (2) hours beyond the scheduled appointment through no fault of Vendor, detention shall be billed at \$55 per hour, prorated in 15-minute increments, with documentation required.

2.4 Rate Adjustments. The rates in Section 2.1 are fixed for the Initial Term. Any future rate adjustments require mutual written agreement at least sixty (60) days before taking effect.

3. PAYMENT TERMS

3.1 Invoicing. Vendor shall invoice Buyer weekly for completed shipments, with each invoice itemizing date, origin, destination, shipment reference number, and applicable rate.

3.2 Payment. Buyer shall pay undisputed invoice amounts within thirty (30) days of receipt (Net 30).

3.3 Disputed Amounts. If Buyer disputes any portion of an invoice in good faith, Buyer shall notify Vendor in writing within fifteen (15) days of receipt and shall timely pay the undisputed portion. The Parties shall work in good faith to resolve any disputed amounts within thirty